

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ramsey AlQaisi	Team: Team # 1	CCRB Case #: 201404394	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 05/01/2014 7:50 PM	Location of Incident: Flatbush Avenue-Brooklyn College subway station	Precinct: 70	18 Mo. SOL 11/1/2015	EO SOL 11/1/2015	
Date/Time CV Reported Thu, 05/01/2014 8:31 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/06/2014 4:21 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Kevin Volk	21713	952329	TB		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Zhiwei You	18558	955682	TB		
2. POM Anthony Rivers	11756	955389	TB DT23		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Kevin Volk	Abuse: PO Kevin Volk stopped § 87(2)(b)				
B.POM Kevin Volk	Discourtesy: PO Kevin Volk spoke discourteously to § 87(2)(b)				

Case Summary

On May 1, 2014, § 87(2)(b) filed this complaint over the telephone with the Internal Affairs Bureau (IAB) under log number 2014-15273 (encl. 6a-6b). On May 7, 2014, this complaint was received by the Civilian Complaint Review Board (CCRB) (encl. 7a-7b).

On May 1, 2014, at approximately 8:00 p.m., § 87(2)(b) and her daughter, § 87(2)(b) entered the Flatbush Avenue-Brooklyn College subway station in Brooklyn and were stopped by PO Kevin Volk and PO Zhiwei You of Transit Bureau. No arrests were made or summonses issued. The following allegations resulted:

Allegation A -PO Kevin Volk stopped § 87(2)(b)

§ 87(2)(g)

Allegation B - PO Kevin Volk spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) declined to mediate her complaint.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- See enclosure for § 87(2)(b)'s pedigree information (encl. 9a).

CCRB Statement

On May 1, 2014, § 87(2)(b) filed this complaint over the telephone with IAB (encl. 6a-6b). On May 7, 2014, § 87(2)(b) provided a phone statement to the CCRB (encl. 8). On May 13, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 9a-9f). § 87(2)(g)

On May 1, 2014, at approximately 8:00 p.m., § 87(2)(b) entered the Flatbush Avenue-Brooklyn College subway station with her § 87(2)(b) daughter, § 87(2)(b). § 87(2)(b) had a monthly Metro Card while § 87(2)(b) had her student Metro Card. § 87(2)(b) swiped her monthly Metro Card and walked through the turnstiles. § 87(2)(b) swiped her student Metro Card and walked through the same turnstile right behind her. § 87(2)(b) saw PO Kevin Volk and PO Zhiwei You of the Transit Bureau walking towards her. § 87(2)(b) identified PO Volk and PO You by their name and shield numbers when she saw their badges. PO Volk asked to see § 87(2)(b)'s Metro Card. § 87(2)(b) continued to walk and asked why PO Volk wanted to see her card. PO Volk told § 87(2)(b) that she had swiped a student pass. § 87(2)(b) continued to walk and PO Volk grabbed her by her left bicep § 87(2)(b) told PO Volk he did not have a right to touch her. § 87(2)(b) tilted her arm back and forth. PO Volk continued to hold her bicep tightly for about twenty seconds. PO Volk guided her towards the wall away from the train.

PO Volk and § 87(2)(b) continued to argue about whether she had used a student Metro Card. § 87(2)(b) had her Metro Card in her hand. PO You was just standing there. PO You took the Metro Card from § 87(2)(b). PO Volk told PO You to go check out the Metro Card. PO You walked down the platform towards the token booth. PO You returned with § 87(2)(b)'s Metro Card and was holding it in his hand. § 87(2)(b) took the card from PO You. § 87(2)(b) said that she was leaving now and tried to walk around PO Volk. PO Volk pushed her right shoulder and asked where she was going. § 87(2)(b) said that PO Volk already checked the validity of her card. PO Volk told § 87(2)(b) that she was not allowed to get on the train and she had to leave. § 87(2)(b) and § 87(2)(b) walked between PO You and PO Volk down the platform. As § 87(2)(b) was walking, she heard PO Volk make a statement to PO You about her being an idiot. The platform was loud but she heard PO Volk say, "She's an idiot. Where was she raised?" § 87(2)(b) turned around and told PO Volk, "How dare you say that?" § 87(2)(b) continued to walk towards the turnstiles in the middle of the platform. PO Volk and PO You walked past them towards the end of the platform and met up with PO Anthony Rivers.

§ 87(2)(b) realized that she did not have PO Volk or PO You's name and badge numbers. § 87(2)(b) and § 87(2)(b) walked down the platform. As they approached the officers, § 87(2)(b) asked PO You and PO Volk, "I would like both of your badge numbers and your names." PO Volk turned to the side with his back to § 87(2)(b) while PO You just stood there. § 87(2)(b) told § 87(2)(b) to take down PO You's badge number. PO Volk continued to turn to the side. § 87(2)(b) told PO Volk that she had the right to get his badge number. PO Volk stopped turning and § 87(2)(b) wrote down his name and badge number. Then, § 87(2)(b) told § 87(2)(b) PO You's name and badge number. § 87(2)(b) double-checked PO You's name and badge number. Then, § 87(2)(b) and § 87(2)(b) walked down the platform and left the station.

Attempts to contact civilians

§ 87(2)(b) did not want § 87(2)(b) to participate in this investigation.

NYPD Statements:

Subject Officer: PO KEVIN VOLK

- See enclosure for PO Volk's pedigree information and assignment (encl. 10d).

Memo book

On May 1, 2014, at 8:00 p.m., § 87(2)(b) was stopped for using a student Metro Card. It was determined that she did not use a student Metro Card and her extreme disorderly conduct was ignored (encl. 10a-10c).

CCRB Statement

On July 17, 2014, PO Volk was interviewed at the CCRB (encl. 10d-10e).

On May 1, 2014, at 8:00 p.m., PO Volk and PO You were patrolling the Flatbush Avenue subway station. As they walked past the turnstiles at the end of the platform, they saw § 87(2)(b) walk through the turnstile and the student Metro Card light go on. PO Volk suspected she was not a student because she looked about 45 or 50 years old. PO Volk asked § 87(2)(b) to see her Metro Card. § 87(2)(b) was with her daughter, § 87(2)(b). § 87(2)(b) said, "Get

the fuck out of here,” and tried to walk away. PO Volk grasped § 87(2)(b) s elbow and said, “That’s not how this works. Let me see the Metro Card.” § 87(2)(b) said, “You fucking asshole. You’re fucking stupid.” § 87(2)(b) was speaking very loudly. § 87(2)(b) took out her Metro Card and handed it over to PO Volk. PO Volk handed the Metro Card to PO You. PO You went to the token booth to verify the Metro Card. PO Rivers was on the opposite end of the platform. While PO You was away, § 87(2)(b) continued to curse at him for about two minutes. PO Volk said, “Who raised you to talk to people like this?” PO Volk made this statement to call her attention to the way she was acting. PO Volk did not say or hear any officer say, “She’s an idiot. Where was she raised?” § 87(2)(b) said, “Who raised me? You’re a fucking asshole. You’re fucking stupid.” § 87(2)(b) also cursed at PO Volk.

PO Volk told § 87(2)(b) that she would be ejected. § 87(2)(b) told PO Volk she was not going anywhere. PO Volk did not want to have to use force or arrest § 87(2)(b) so he continued to absorb her cursing. PO You returned with the Metro Card and said that it was just used not as a student pass. PO Volk told § 87(2)(b) that she was stopped because he saw the student Metro Card light up when she walked through. PO Volk returned the Metro Card to § 87(2)(b). § 87(2)(b) said, “Because that was my student Metro Card you fucking idiot.” PO Volk said that there could have been a reasonable explanation but needed to conduct an investigation which § 87(2)(b) did not let him do. As PO Volk and PO You walked away down the platform to meet with PO Rivers, § 87(2)(b) and § 87(2)(b) were in front of them. § 87(2)(b) was saying over her shoulder, “You fucking faggot. You fucking faggot.” PO You and PO Volk walked past § 87(2)(b) and met with PO Rivers further down the platform. PO Volk, PO You and PO Rivers were having a conversation about the incident. After about a minute of talking, § 87(2)(b) placed herself in the middle of their circle. § 87(2)(b) wrote down PO Volk and PO You’s names and shield numbers. § 87(2)(b) said, “Thank you,” and left with § 87(2)(b).

Witness Officer: PO ZHIEWEI YOU

- See enclosure for PO You’s pedigree information and assignment (encl. 11d).

Memo book

On May 1, 2014, PO You assisted PO Volk with a stop for a student Metro Card (encl. 11a-11c).

CCRB Statement

On July 17, 2014, PO You was interviewed at the CCRB (encl. 11d-11e). § 87(2)(g)

PO You corroborated PO Volk’s testimony regarding § 87(2)(b) s behavior during the stop and use of profanity. PO You did not say or hear PO Volk say, “She’s an idiot. Where was she raised?” § 87(2)(b) followed PO You and PO Volk down the platform. PO Volk and PO You walked towards PO Rivers. § 87(2)(b) continued to curse at them as they walked away. PO Rivers asked what happened. § 87(2)(b) walked up to PO You and PO Volk. § 87(2)(b) looked at them, said “This is your shield number and name? Alright,” and wrote down PO Volk and PO You’s badge numbers and names. PO Volk, PO You and PO Rivers got on the train and § 87(2)(b) and § 87(2)(b) left.

Other Officers Interviewed

On July 17, 2014, PO Rivers was interviewed in regards to this case (encl. 12a-12f). However, he did not recall the incident and did not hear PO Volk make the alleged discourteous statement.

Status of Civil Proceedings

- As of October 7, 2014, § 87(2)(b) had not filed a Notice of Claim with the City of New York (encl. 13).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).

Subject Officer CCRB History

- PO Volk has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2).

Conclusion

Identification of Subject Officer

PO Volk acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A -PO Kevin Volk stopped § 87(2)(b)

PO Volk stated that he saw § 87(2)(b) walk through the turnstile and saw the student Metro Card signal light up. PO Volk suspected § 87(2)(b) of improperly using the student Metro Card because she was an older adult. PO Volk stopped her in order to investigate whether or not she used a student Metro Card. § 87(2)(g)

In order to pursue an individual, officers must have reasonable suspicion that the person is, was, or is about to engage in criminal activity. People v. Murrell, 859 N.Y.S.2d 897 (2008) (encl. 1a-1d).

§ 87(2)(g)

Allegation B - PO Kevin Volk spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that PO Volk said, "She's an idiot." PO Volk denied making this statement. Moreover, PO You denied hearing any officer make that statement, and PO Rivers did not recall the incident. § 87(2)(b) did not allow § 87(2)(b) to provide a statement to the CCRB. § 87(2)(g)

Team: 1

Investigator: _____ Ramsey AlQaisi _____
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date